Narendra And Others vs State Of U.P. on 12 July, 2019

Author: Ram Krishna Gautam

Bench: Ram Krishna Gautam

HIGH COURT OF JUDICATURE AT ALLAHABAD

A.F.R.

Reserved on 16.05.2019

Delivered on 12.07.2019

Case :- CRIMINAL APPEAL No. - 1987 of 2010

Appellant :- Narendra And Others

Respondent :- State Of U.P.

Counsel for Appellant :- Alkesh Singh Chauhan

Counsel for Respondent :- Govt. Advocate

Hon'ble Ram Krishna Gautam,J.

This appeal, under Section 374(2) of Cr.P.C., has been filed by Narendra, son of Lala Ram, Brajesh, son of Genda Lal and Pintoo alias Surendra Singh, son of Rajbahadur, against judgment of conviction dated 30.3.2010, passed by Special Judge (SC/ST Act)/ Additional Sessions Judge, F.T.C. No. 2, Mainpuri, in S.T. No. 30 of 2006, State Vs. Narendra and others, u/s 147, 323, 325, 452, 504, 506 I.P.C. read with 3(1)(x) SC/ ST Act, related with Case Crime No. 321 of 2004, P.S. Bhogaon, District Mainpuri, and sentence made therein, whereby appellants, along with co-accused Kalyan

and Genda Lal, were convicted for offences punishable u/s 147, 323, 452, 504, 506 I.P.C. and accused-appellant Narendra was further convicted in addition to those conviction for offence punishable u/s 354 I.P.C. and after hearing over quantum of sentence convict Kalyan and Genda Lal were released on probation of good conduct, under their physical ailment and old year age, but present appellants Narendra, Brajesh and Pintoo alias Surendra Singh were sentenced with one year's R.I. with fine of Rs. 200/- and in default 15 days simple imprisonment for offence punishable u/s 147 I.P.C., six months R.I. with fine of Rs. 100/- and in default 7 days simple imprisonment for offence punishable u/s 323 I.P.C., two years' R.I. with fine of Rs. 1,000/- and in default one month's simple imprisonment for offence punishable u/s 325 I.P.C., one year's R.I. with fine of Rs. 200/- and in default 15 days simple imprisonment for offence punishable u/s 452 I.P.C., one year's R.I. with fine of Rs. 200/- and in default 15 days simple imprisonment for offence punishable u/s 504 I.P.C., two years' R.I. with fine of Rs. 1,000/- and in default one month's simple imprisonment for offence punishable u/s 506 I.P.C. with further sentence of convict appellant Narendra with one year's R.I. with fine of Rs. 200/- and in default 15 days simple imprisonment for offence punishable u/s 354 I.P.C. Each of the convict appellants as well as co-accused Genda Lal and Kalyan, who were enlarged on probation of two years, were acquitted for charge levelled against them for offence punishable u/s 3(1)(x) SC/ST Act.

Heard Sri Alkesh Singh Chauhan, learned counsel for the appellants, and Sri K. K. Rajbhar, learned AGA for the State.

The grounds of appeal, taken in memo of appeal and argued at Bar by learned counsel for appellants, were that, the trial court failed to appreciate the facts and law placed before it and impugned judgment of conviction and sentence was against weight of evidence on record. Prosecution has failed to prove its case, but impugned judgment was passed with no substantial evidence in support of it. F.I.R. was lodged against appellants u/s 147, 323, 325, 452, 504, 506 I.P.C. read with 3(1)(x) SC/ ST Act and after appreciation of evidence charge levelled for offence 3(1)(x) SC/ST Act was not found established against the appellants. There was no independent eyewitness account of alleged incident, rather witnesses examined were highly interested witnesses and were not trustworthy, because the injury reports are highly improbable and prepared after consultation with doctors; in which duration of injuries were improbable. Prosecution failed to prove assault of criminal force to a woman with intent to outrage her modesty, even then conviction u/s 354 I.P.C. was made. No case of insult, intended to provoke breach of peace, was initially mentioned. But conviction for same is there. There was no motive for commission of those assaults. Injuries to Sunita Devi were not disclosed by prosecution nor she was present at the place of occurrence, whereas those injuries said to be sustained by Sunita are highly improbable and fraudulently manufactured. Hence this appeal with prayer for setting aside impugned judgment dated 30.3.2010 of conviction and sentence awarded therein and thereby request for awarding acquittal of charges levelled against appellants.

From the very perusal of impugned judgment and trial court's record on its face, it is apparent that Case Crime No. 321 of 2003 u/s 147, 323, 325, 452, 504, 506 I.P.C. read with 3(1)(x) SC/ ST Act (Ext. Ka-1) was got registered at P.S. Bhogaon, District Mainpuri, on 2.9.2004 at 17.50 hours upon report of Shyam Babu, son of Chheda Lal against Narendra, Brijesh, Pintoo alias Surendra Singh,

Kalyan and Genda Lal with this contention that the informant Shyam Babu, son of Chhedalal, resident of Village Kamalpur, P.S. Bhogaon, District Mainpuri, submitted a written report, scribed by Rajesh Kumar, son of Dr. Narendra Singh, resident of Alipur Kheda, P.S. Bhogaon, District Mainpuri, having signature of informant Shyambabu over it, with contention that on 2.9.2004 in the morning informant's daughter Girija Devi, aged about 17 years, had gone for having dung cake (Kanda) when Narendra son of Lala Ram, resident of Villabe Bibipur, District Kannauj, presently residing in village Kamalpur, caught hold her hand and outraged her modesty. She complained the occurrence to informant just after return. Informant went to house of accused for lodging protest. Owing to this enmity, on the same day at about 1.30 P.M., those named accused persons Narendra, son of Lala Ram, Brajesh, son of Genda Lal and Pintoo alias Surendra Singh, son of Rajbahadur, Kalyan and Genda Lal sons of Shiv Dayal, armed with spear, Kanta and lathis, came at home of informant. They abused and summoned informant and assaulted him. Upon rescue call, informant's father Chheda Lal, son of Dwarika Prasad, Pramod son of Lalman, Rajkumari, wife of Rajveer and informant's daughter Girija Devi intervened but they all were badly beaten by them. All injured were taken to Police Station. This occurrence was witnessed by many village persons and nearby neighbours, who saved them. Accused persons extended threat of dire consequences and ran away from spot. Investigation resulted in filing of charge-sheet u/s 173 Cr.P.C. (Ext. Ka-11) against Narendra, Brijesh, Pintoo alias Surendra Singh, Kalyan and Genda Lal for offences punishable u/s 147, 323, 325, 452, 504, 506 I.P.C. read with 3(1)(x) SC/ ST Act at P.S. Bhogaon, District Mainpuri. The C.J.M. took cognizance for those offences over police report u/s 173 Cr.P.C. vide order dated 7.12.2004.

Since offence punishable u/s 3(1)(x) SC/ST Act was exclusively triable by Court of Special Judge created under the Act, hence the Magistrate vide order dated 13.4.2006 committed the file to the Court of Sessions Judge, Mainpuri, from where it was transmitted to the Court of Special Judge (SC/ST Act)/ Additional Sessions Judge, Mainpuri.

After hearing learned counsel for defence as well as learned Public Prosecutor, learned Presiding Judge/ Additional Sessions Judge, vide order dated 29.8.2006, levelled charges for offences punishable u/s 147, 452/149, 323/149, 325/149, 504, 506 I.P.C. read with 3(1)(x) SC/ ST Act against Narendra, Brijesh, Pintoo alias Surendra Singh, Kalyan and Genda Lal with a further charge levelled for offence punishable u/s 354 I.P.C. against accused Narendra.

Charges were read over to accused persons, who pleaded not guilty and claimed for trial.

Prosecution examined PW1- informant Shyam Babu, PW2 Pramod, PW3 Smt. Raj Kumari, PW4- father of informant Chheda Lal, PW5- Informant's daughter Girija Devi, PW6- Smt. Sunita, PW7- Dr. Rajeev Kumar Dikshit, PW8- Constable Patiram, PW9- Dr. R. K. Garg and PW10- Circle Officer, P.S. Bhogaon, Ramanand Gautam.

With a view to have explanation, if any, and version of defence over incriminating evidence led by prosecution, each of accused persons were examined u/s 313 Cr.P.C. in which accusation was denied with a general reply of each of them that occurrence as alleged by prosecution was wrong and witnesses have given false statements owing to political enmity with false manufactured medical

papers and no knowledge about Exhibit Ka1, Ka6 and Ka7. Specific statement of each of accused is that informant is of Samajwadi Party and owing to political enmity this false case was got registered.

No evidence in defence was given by defence side and only vague reply was given to all questions put u/s 313 Cr.P.C.

After hearing learned Public Prosecutor as well as learned counsel for defence impugned judgment of conviction was passed in which there was judgment of acquittal for offence punishable u/s 3(1)(x) of SC/ST Act against each of convict persons. After hearing on quantum of punishment order of sentence, mentioned above, was passed against convict Narendra, Brijesh, Pintoo alias Surendra Singh, Kalyan and Genda Lal, whereas instead of sentencing convict Kalyan and Genda Lal in the circumstances of their physical ailment and old age, they were released on probation of two years for keeping good behaviour upon bonds and sureties as directed by the trial judge.

No appeal, either by informant or by State, has been brought in notice, against judgment of acquittal for offence punishable u/s 3(1)(x) SC/ ST Act or direction for release on probation. Hence present appeal is by convict appellants Narendra, Brijesh and Pintoo alias Surendra Singh against judgment of conviction and sentence, as above.

Informant-PW1 Shyambabu, in his statement on oath, has said that on 2.9.2004 his daughter Girja had gone to take Dung cake (Kanda) from her Bitora, where appellant Narendra, son of Lala Ram, who is resident of Village Bibipur and was presently residing in village Kamalpur, caught her hand and outraged her modesty. She instantly reported the occurrence to informant just after her coming back to home. He went to lodge protest at home of accused persons and the second occurrence, at about 1.30 P.M., took place at the residence of informant by those five named accused persons. They, armed with spear, kanta and lathis, rushed at the home of the informant, by abusing summoned him to come out and when he came, they all used force with abuse. Upon rescue call, his father Chheda Lal, Pramod, Smt. Raj Kumari and informant's daughter Girija Devi intervened, they too were badly beaten by accused persons. They had sustained injuries and they were taken at Police Station where report was scribed by Rajesh Kumar under name of accused-appellant and others (annexed with file as paper no. 4 Ka/3) was submitted by this informant and this report was exhibited as Ext. Ka1. Those named accused persons, were present in the docket of the court, at the time of recording of evidence and they had committed this occurrence. In cross-examination it has specifically been said that scribe Rajesh Kumar is of same village of informant and not of Alipur Kheda. What was dictated by him was scribed by him and after this registration of case crime number this witness was examined by police within 3-4 days, in which place of occurrence was got inspected. His family members were also examined by the Investigating officer. The first occurrence was of 7.30 A.M. when his daughter had gone to take dungcake (Kanda) at her Bithora, which was at a distance of about 200-250 yards from home of informant and after her coming back to home this was complained to him and he lodged protest at the house of accused person. Thereafter subsequent occurrence took place. This second occurrence was within 4 to 6 minutes of lodging of protest and those accused persons assaulted this witness and when he tried to save him by hiding, they did criminal trespass by entering in his house and assaulted him and when his family members tried to intervene, they were also beaten, in which they had sustained grievous hurt. Injured were taken at

Police Station, from where they were taken to hospital at Bhogaon and upon police intervention those injured were medically examined and treated at P.H.C. Bhogaon, from where his father was referred to District Hospital, Mainpuri, where he was x-rayed. In cross-examination the occurrence has not been disputed by learned counsel for defence, rather a suggestive leading question has been put that some occurrence had taken place in which Pramod and others gave assault but this false accusation was got lodged, owing to enmity against accused persons and this question has been answered in negative. But this suggestive leading question gives confirmation that occurrence of assault is not disputed by defence side, rather it is being said to have occurred otherwise than alleged. No evidence in defence has been given to substantiate this suggestion of defence counsel, whereas this witness by his intact testimony has proved his version, which has further been corroborated by testimony of PW8- Constable 193 Patiram, who has said on oath that while being posted as Constable Moharrir on 2.9.2004 at P.S. Bhogaon, he, upon receipt of written report of Shyambabu, registered F.I.R., of which chick report, under his handwriting and signature, is on record as paper no. 4A/1 and the same has been exhibited as Ext. Ka6. This registration of case crime number was entered in G.D. Entry No. 30 of 2.9.2004 at 17.50 hours and carbon copy of same, under his handwriting and signature, is attached with record as 4A/2, proved and exhibited as Ext. Ka7. In cross-examination it has specifically been said by this witness that all injured were in company of informant at the time of registration of case crime and he had seen their injuries. Injury of Chheda Lal was entered in the general diary entry. Other injured were also having injuries, which were seen by him and letter for their examination was prepared. As such, suggestive question about ante-time registration of case crime number was put by learned counsel for defence and the same was answered in negative. When question about testimony of this witness was put to accused persons, a simple answer of false testimony was given by police, whereas formally Ext. Ka1 and Ext. Ka6 have been proved.

These injured were taken by police for their medical examination after registration of case. This has been proved by PW7 Dr. Rajeev Kumar Dikshit by his testimony that while being posted at Government Hospital, Bhogaon, on 2.9.2004, has examined Smt. Sunita, wife of Shyambabu, who was brought by Constable Umesh Chandra of P.S. Bhogaon. She was having following injuries (1) Abrasion on wrist of left hand within an area of 1 x 1 cm.

(2) Contusion on the left side of thigh 10 cm above knee joint in an area of 5 x 2 cm of read colour.

Both these injuries were simple and fresh caused by hard blunt object and were of 1.30 to 3.00 P.M. of 2.9.2004. Medico legal report prepared under his handwriting and signature is Ext. Ka2.

On the same day at 6.35 P.M. he has examined Pramod son of Lalmani and found following injuries:

> (1) Lacerated wound over left upper limb 3 cm below elbow joint within area of 1..5 cm. (2) Lacerated wound over left upper limb 4 cm below elbow joint 1.5 x .5 cm x muscle deep.

Both were simple, caused by hard blunt object in between 1.30 to 3.00 P.M. on 2.9.2004. Medico legal report under his handwriting and signature is on record as Ext. Ka3.

On the same day, in continuation, Smt. Girja, w/o Malikram, was examined having following injuries:

> (1) One injury of radish colour on right side of back side of chest 10 cm away from right shoulder within area of 5 x 2 cm. (2) Contusion 10x 2 cm of radish colour over right upper limb towards outer of right elbow joint. (3) Contusion over left lower limb in an area of 3x2 cm, 11 cm above femur joint.

All injuries were simple, caused by hard blunt object in between 1.30 to 3.00 P.M. on 2.9.2004. Medico legal report under his handwriting and signature is on record as Ext. Ka4.

He has examined Rajkumari in same continuation having following injuries:

> (1) Lacerated wound right side of skull 9 cm above right ear in an area of 1.0 x1.0 cm over mid of skull. (2) Contusion over right upper limb 5 cm above right wrist joint in an area of 9x 4 cm of red colour for which x-ray was recommended. (3) Contusion over right thigh 10 cm above knee joint in an area of 10x 2 cm of red colour.

Except injury no. 2 all other injuries were simple, caused by hard blunt object in between 1.30 to 3.00 P.M. on 2.9.2004. Medico legal report under his handwriting and signature is on record as Ext. Ka5.

In the same continuation he had examined Cheeda Lal at 6.45 P.M. having following injuries:

> (1) Lacerated wound over right side of eyebrow in an area of 3x3 cm x muscle deep for which x-ray was recommended. (2) Contusion over right side of face over right eye in an area of 10x 8 cm.
>
> (3) Contusion right side of skull 2 cm above right ear in a area of 5 x 5 cm.
>
> (4) Contusion over right thigh 10 cm below waist in an area of 5x 3 cm.
>
> (5) Lacerated wound over right phalanges in an area of 1x 1 cm x muscle deep.

Except injury no. 1 all other injuries were simple, fresh, caused by hard blunt object in between 1.30 to 3.00 P.M. on 2.9.2004. Medico legal report under his handwriting and signature is on record as Ext. Ka6.

In cross-examination it has specifically been stated that all injured were brought by police and were examined as above. There is no contradiction or embellishment. Rather his testimony has been supported by statement of PW9 Dr. R. K. Garg, who has said on oath that while being posted as Radiologist at District Hospital, Mainpuri, on 3.9.2004, he has got x-ray of injury of skull of injured Chheda Lal, son of Dwarika, resident of Kamalpur, P.S. Bhogaon, District Mainpuri, upon bringing by police personnel of P.S. Bhogaon and this was with no fracture. X-ray report under his

handwriting and signature is on record Ext. Ka6 and x-ray plate is material Ext 1. On the same day upon bringing by same police personnel x-ray of Rajkumari, w/o Rajveer was conducted in which there was fracture of radius and ulna bone. X-ray report, under his handwriting and signature, is on record Ext. Ka9 and x-ray plate is material Ext 2. In cross-examination, statement as in chief, has been further reiterate. Hence grievous injury in which radious and ulna bone were found fractured and other injuries of hard blunt object of above alleged period, time and date has been proved by Constable Moharrir, who had prepared letter for medical examination by making entry in G.D. as well Medical Officer, who had medically examined the injured and Radiologist, who got the same x-rayed. Hence offence punishable u/s 323 and 325 I.P.C. over injured witnesses have been fully proved.

Injured PW2 Pramod has said that he tried to save injured in which he was beaten by accused persons, who were assaulting Chheda Lal and he was given assault by Genda Lal. Rajkumari, w/o Rajveer and Girja Devi D/o Shyambabu were also injured. Threat of dire consequences were extended and there was abuse by accused persons. This has been repeated in examination in cross with no embellishment, exaggeration or contradiction other then in full support of PW1.

This has again been corroborated by testimony of PW3, Rajkumari, who in her statement has categorically stated that Shyambabu was beaten by accused persons and she along with other injured intervened in which she too was beaten by them, therein, her bones were fractured for which she was medically examined and x-rayed. The same has been repeated in the examination in cross with no contradiction and embellishment.

PW4-Chhedalal, injured, has reiterated prosecution version in his testimony for which there is no contradiction or exaggeration.

PW6-Sunita has also narrated the same sequence of occurrence and is fully intact.

PW5- Girja is the victim, who suffered outraging of modesty by accused-appellant Narendra, who is a relative of Kalyan and she complained this occurrence to her father, who went at the house of accused persons for lodging protest and this infuriated them, as a result, those named accused persons, armed with lathi danda, rushed at the house of Shyambabu and committed this assault and when these family members tried to intervene, they all were badly beaten in which they had sustained injuries, as above. Regarding occurrence there is no contradiction or embellishment in her examination in cross, rather fully intact and reliable witness is she.

This has been formally proved by PW10-I.O. Ramanand Gautam, Dy. S.P., who has formally proved his investigation and preparation of site plan Ext. Ka 10 and charge sheet Ext. Ka 11.

Section 147 I.P.C. provides whoever is guilty of rioting, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both. Rioting has been defined under section 146 I.P.C. that whenever force or violence is used by an unlawful assembly, or by any member thereof, in prosecution of the common object of such assembly, every member of such assembly is guilty of the offence of rioting. In the present case, five accused persons

armed with lathi danda have been assigned role of rushing at the house of informant and using force, thereby causing hurt and grievous hurt to those injured witnesses. Hence, it was rioting by unlawful assembly for which trial court has convicted and sentenced the accused persons and this was in continuation of previous occurrence, which had occurred when Girja Devi had gone to take dung cake (Kanda) and Narendra, one of members of unlawful assembly, outraged her modesty, which was protested by her as well as informed to informant this occurrence has been fully proved by Girja for which she is fully trustworthy and reliable injured witness. Hence this offence of rioting was fully proved.

Hurt has been defined in section 319 I.P.C., whoever causes bodily pain, disease or infirmity to any person is said to cause hurt. This definition of hurt contemplates causing of bodily pain, disease or infirmity to any person. This bodily pain may be of any nature. This has further been defined under section 320 I.P.C. that following kinds of hurt are designated as "grievous hurt", in which seven categories i.e. fracture or dislocation of bones are included and this grievous hurt, if voluntarily caused, has been defined under section 321 I.P.C. that whoever does any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person, and does thereby cause hurt to any person, is said "voluntarily to cause hurt". Section 322 I.P.C. provides for voluntarily causing grievous hurt and section 323 I.P.C. provides for punishment for causing grievous hurt that whoever, except in the case provided for by section 334, voluntarily causes hurt, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both. Section 325 I.P.C. provides punishment for voluntarily causing hurt that whoever, except in the case provided for by section 335, voluntarily causes grievous hurt, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

In the present case injured witnesses, discussed as above, have proved infliction of hurt and grievous hurt by those accused persons over those injured witnesses, who have proved the sequence of occurrence with cogent and trustworthy evidence.

Section 354 I.P.C. provides punishment for offence of assaults or uses of criminal force to any woman with intent to outrage her modesty. The ingredients of offence punishable u/s 354 I.P.C. are (1) assault or use of criminal force to any woman; (2) intention to outrage her modesty or knowledge that by this assault there is likely that he will thereby outrage her modesty or be there and both of these ingredients, if are proved, punishment provided u/s 354 I.P.C. is to be awarded. In the present case, Smt. Girja by her testimony has proved that she being a woman was for having dung cake (Kanda) when she was caught hold by accused Narendra by use of criminal force upon her and this was with intention to outrage her modesty. At that time she was all alone then this assault was by Narendra. This was protested there at and instantly reported to her parents just after coming to home. Her father Shyambabu went at the house of accused for lodging protest and soon after this assault by unlawful assembly comprising those named five accused persons was made. Hence this offence punishable u/s 354 I.P.C. was fully proved.

Section 452 I.P.C. provides punishment for criminal trespass. PW1 Shyambabu and other injured witnesses by intact testimonies have proved that when Shyambabu ran inside his house for saving

himself, accused persons did criminal trespass and gave assault to them inside house too. This has been proved by Investigating Officer by his site map (Ext. Ka 10).

As per law laid down by Hon'ble Apex Court in Vijai Kumar Vs. State of Punjab, AIR 1999 SC 841 for a conviction u/s 452 I.P.C. it is necessary to prove that appellant committed house trespass after making preparation for causing hurt. The mere fact that accused entered in the office and assaulted or caused hurt does not prove such. There must be clear proof of hurt. To bring home the offence u/s 452 I.P.C., the prosecution has to prove (a) that accused committed house trespass as defined in section 342 I.P.C.; (b) that a such trespass after making preparation for causing hurt to or for assault or of wrongful restraint or for putting any person in fear of hurt, assault or wrongful restraint.

In the present case PW1 Shyambabu and other injured witnesses Girja and Rajkumari have proved that those five named accused persons armed with lathis in furtherance of their common object came to the house of the informant, abused and summoned him, Shyambabu came out, assault was made to him, he ran inside house to save himself, accused persons entered in house, there they again assaulted him. Other injured witnesses, who tried to intervene, were also assaulted. Hence charge u/s 452 I.P.C. is proved.

Learned counsel for appellant argued about alleged contradictions in the statements of prosecution witnesses. Hon'ble Apex Court in Lila Ram Vs. State of Haryana, 2000 SCC (Cri) 222 has propounded that minor embellishment and trivial discrepancies is usual in witnesses' statement and inspite of the same, totality of situation ought to have been reviewed. In a lengthy cross-examination minor discrepancies, which are due to normal errors of perception or observation should not be given importance.

Hon'ble Apex Court in Kalu Ram Vs. State of Himachal Pradesh, AIR 1973 SC 2773 has propounded that in a criminal trial, the onus is upon prosecution to prove different ingredients of the offences and unless it discharges that onus cannot succeed. Prosecution has to prove beyond all reasonable doubt, whereas accused has to prove only till establishing preponderance of probabilities.

In Appeal Hon'ble Apex Court in Narmada Prasad Vs. Chhaggan Lal, AIR 1969 SC 395 has propounded that burden is on the appellant to prove how the judgment under appeal is wrong. He may show where the assessment of evidence has gone wrong.

In the present appeal the appellants failed to show as to whether there is wrong appreciation of evidence and judgment gone wrong. Rather the judgment is well within legal appreciation of evidence on record.

Regarding quantum of sentence the trial judge has considered the facts and circumstances including age and ailment of convicts. Two of convicts, Genda Lal and Kalyan, who were suffering from ailments and of old age, were released on probation, instead of sentencing them at the time of sentence. Rest of three present appellants have been sentenced with lenient attitude. Hence nothing is about inadequacy of sentence. The appeal merits its dismissal on point of conviction as well as sentence.

The appeal is dismissed.

Record of trial court along with copy of judgment be sent to the trial court for follow up action against convict appellants.

The appellants are on bail. Their sureties are discharged. They shall surrender before the trial court within fifteen days from the date of judgment, where they shall be sent for jail for suffering sentences awarded to them by the trial court.

Order Date :-12.7.2019 Pcl